

Tentative Rulings for Department 403

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Tentative Ruling

Re: **Williams v. Perez**
Superior Court Case No. 25CECG05048

Hearing Date: June 18, 2026 (Dept. 403)

Motion: Defendant Martin A. Perez's Demurrer to the Complaint

Tentative Ruling:

To sustain defendant Martin A. Perez's demurrer to the Complaint, with leave to amend. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff Leondris Williams is granted 15 days leave to file a First Amended Complaint, which will run from service by the clerk of the minute order. New allegations/language must be set in **boldface** type.

Explanation:

Defendant Martin A. Perez ("Defendant") demurs on the basis that the Complaint is untimely given the 2-year statute of limitations for a cause of action alleging personal injury. (CCP, § 335.1.)

A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.)

Here, plaintiff Leondris Williams ("Plaintiff") concedes the statute of limitations for the personal injury cause of action runs from the date of the vehicle accident on October 17, 2023, to October 17, 2025. The Complaint before the court is file stamped on October 27, 2025, which is 10 days late. The facts that currently appear on the face of the Complaint show that the Complaint was filed after the statute of limitations had run.

Equitable Tolling

Plaintiff argues that the statute of limitations deadline may be extended to consider the Complaint timely under the doctrine of equitable tolling. The doctrine of equitable tolling is a rule of procedure adopted by the courts and operates independently of the Code of Civil Procedure. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 650.) A plaintiff may be relieved from the failure to comply with the statute of limitations when the plaintiff has several legal remedies and, reasonably and in good faith, pursues one. (*Addison v. State of California* (1978) 21 Cal.3d 313, 318.) The doctrine of equitable tolling requires (1) timely notice, (2) lack of prejudice to the defendant, and (3) reasonable and good faith conduct on the part of the plaintiff. (*Id.* at p. 319)

The Complaint does not contain facts to support the application of the doctrine of equitable tolling.

Tolling Due to Rejection of Electronic Filing

Alternatively, Plaintiff argues that the method of electronically filing the Complaint on October 16, 2025, is considered the filing date if there is a technical problem with the court's filing system on that date under California Rules of Court, rule 2.259. However, this rule is not applicable to a complaint or any other initial pleading. (Cal. Rules of Court, rule 2.259(c).) The same argument, however, may be supported under another statute or rule of court, such as Code of Civil Procedure, section 1010.6, subdivision (e)(4)(E). The information to support such an argument is not present in the Complaint before the court, thus, an amendment is necessary.

The facts that support Plaintiff's arguments made in opposition to the demurrer to toll the statute of limitations are not judicially noticed or stated in the four corners of the complaint. Accordingly, the demurrer is sustained and leave to amend is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** June 17, 2026.
(Judge's initials) (Date)